



June 20, 2023

BY ELECTRONIC FILING

Marlene H. Dortch
Secretary
Federal Communications Commission
45 L Street, N.E.
Washington, DC 20554

Re: *ICFS File Nos. SAT-MOD-20070919-00129 (Call Sign S2651); SAT-MOD-20230207-00022*

Dear Ms. Dortch:

In an effort to avoid the inevitable conclusion that it has forfeited any claim to the 2 GHz Band, DISH resorts to a series of increasingly absurd claims. DISH asserts that it can maintain exclusive rights to the 2 GHz band despite never offering the mobile satellite service it promised the Commission a decade ago.¹ DISH then goes on to claim that its *de minimus* use of the spectrum not only maintains its claim to the band for now, but also secures its right *in perpetuity*.² When reduced to its essence, DISH is adamant it has found a loophole and can avoid any Commission oversight through one simple step—license its satellites *outside* the United States.³ Under DISH’s theory, foreign governments—not the United States—get to determine whether foreign satellites can maintain their control over American airwaves. Not only is such a policy illogical, it would also undermine U.S. sovereignty and potentially threaten national security. The Commission should reject DISH’s unreasonable arguments and swiftly grant SpaceX’s application so that American consumers can finally benefit from service in the 2 GHz Band.

When DISH acquired its mobile satellite service (“MSS”) authorizations in the band, it promised the Commission that if it granted DISH free terrestrial rights, the American public would get a new terrestrial wireless service and a robust satellite service.⁴ Now a decade later, DISH has

¹ See Letter from Jeffrey H. Blum to Marlene Dortch, ICFS File Nos. SAT-MOD-20070919-00129 and SAT-MOD-20230207-00022, at 2-3 (June 13, 2023) (“DISH June 13 Letter”).

² *Id.* at 2-3 (“[T]here are no expiration dates for grants of market access to non-U.S.-licensed satellites . . . it is impossible to request a renewal of an authorization that has no expiration date on its face.”); see also Letter from Jeffrey Blum to Marlene Dortch, ICFS File Nos. SAT-MOD-20070919-00129 and SAT-MOD-20230207-00022 (May 11, 2023) (“DISH May 11 Letter”).

³ See DISH June 13 Letter at 2-3; DISH May 11 Letter at 1-2.

⁴ See, e.g., *Service Rules for Advanced Wireless Services in the 2000-2020 MHz and 2180-2200 MHz Bands*, 27 FCC Rcd. 16102, ¶ 6 (2012) (“AWS-4 Order”) (“The Commission intend[s] for MSS to provide communications in areas where it is difficult or impossible to provide communications coverage via terrestrial base stations and at times when coverage may be unavailable from terrestrial-based networks.”); *id.* ¶ 180 (“[N]othing we do today eliminates the existing mobile satellite allocation for the 2 GHz MSS band or limits the licensees’ continued satellite use rights for this spectrum . . .” (footnote omitted)); Reply Comments of DISH Network Corporation, WT Docket No. 12-70 et al., at 9 (June 1, 2012) (“The benefits of terrestrial broadband need not, and should not,

still delivered nothing. In its latest letter, DISH finally comes clean that it does not offer any service, but instead suggests that the American consumer is irrelevant. DISH claims that its *de minimus* use of the band without providing any service to the American people should allow it exclusive claim to the spectrum indefinitely.⁵ DISH admits that its DBSD satellite communicates with three earth stations in the United States, only one of which actually operates on the 2 GHz band.⁶ But its use of even these three stations is suspect and they certainly provide no service for Americans. DISH claims the first earth station is used to test coordination of DBSD's transmissions with ATC systems, despite its ATC authorizations being eliminated over a decade ago.⁷ DISH's second earth station is licensed to "provide reference signals" for antenna calibration—an intermittent, transmit-only operation that provides no consumer benefit.⁸ And DISH's third and final earth station is used for telemetry, tracking, and command with the DBSD satellite on a mere 2.3 megahertz of Ka-band spectrum—not the 2 GHz band.⁹ DISH's acknowledgment that it has at best only *de minimus* 2 GHz satellite operations in the United States confirms SpaceX's original point that it can share the 2 GHz band with whatever satellite operations DISH has in the band.¹⁰

Yet DISH seeks to avoid the expiration date on its authorization by claiming that the Commission's rules allow it to squat on the spectrum indefinitely. DISH argues that the Commission implicitly decided—without any formal acknowledgement to the public—that it would deviate from global practice by preferentially giving foreign satellite systems indefinite access rights to the U.S. market and placing U.S.-licensed systems at a competitive disadvantage.¹¹ Under DISH's revisionist interpretation of the Commission's rules and decisions, it "was always the case" that the Commission bestowed foreign operators with perpetual access rights such that "[n]o U.S. authorization for any non-U.S.-licensed satellite ever had an expiration date or was subject to renewal."¹² But multiple authorizations debunk DISH's claim.¹³ As do multiple proceedings where the Commission has taken the exact opposite position, starting with the *DISCO*

come at the expense of MSS."); Letter from Jeffrey H. Blum to Marlene H. Dortch, WT Docket No. 13-225, at 1 n.2 (June 1, 2016) ("[Dish's] election [of terrestrial downlink] has no effect on the MSS licenses held by DISH.").

⁵ See DISH June 13 Letter at 2-3.

⁶ See *id.* at 3; *Satellite Communications Services Information re: Actions Taken*, Public Notice, Report No. SES-02550 (IB rel. Mar. 15, 2023).

⁷ See Exhibit A: License Modification Application, ICFS File No. SES-MOD-20090202-00123, at 1 (Feb. 2, 2009). See also *AWS-4 Order* ¶ 318 (eliminating ancillary terrestrial component from 2 GHz MSS authorizations).

⁸ See Exhibit A: New ICO Satellite Services G.P. License Application, ICFS File No. SES-LIC-20071221-01753, at 1 (Dec. 21, 2007).

⁹ See Radio Station Authorization, Call Sign E070290 (issued Mar. 10, 2023).

¹⁰ See Application for Modification of Authorization for the SpaceX Gen2 NGSO Satellite System to Add a Mobile-Satellite Service System, ICFS File No. SAT-MOD-20230207-00022 (Feb. 7, 2023).

¹¹ See DISH June 13 Letter at 2-3; DISH May 11 Letter at 1-2.

¹² DISH June 13 Letter at 1.

¹³ See, e.g., Grant Stamp, ICFS File No. SAT-PPL-20160512-00048, Condition 9 (issued Dec. 7, 2016) (specifying a termination date and authorization term of fifteen years for a foreign-authorized satellite); Grant Stamp, ICFS File No. SAT-RPL-20170927-00136, Condition 8 (issued Dec. 7, 2017) (same).

II Order,¹⁴ and most recently in the *C-Band Order*,¹⁵ by repeatedly treating the authorizations issued to U.S. and non-U.S. licensed systems equally. DISH argues this parity ends at its doorstep, resting its argument on the notion that “non-U.S. licensed satellite operators do not hold Commission licenses.”¹⁶ DISH misses the point—the Commission has determined it will *treat* U.S.- and foreign-licensed satellites the same, regardless of the type of authorization.

Additionally, DISH claims that Section 25.161 of the Commission’s rules is irrelevant, and that its allegedly indefinite access rights persist in spite of DISH’s complete lack of service in the United States.¹⁷ But this view conflicts with DISH’s own prior acknowledgement of the purpose of the rule and the Commission’s findings. Specifically, following a satellite failure in 2008, DISH requested a waiver to suspend operations for more than ninety days, arguing that “Section 25.161(c) is ‘intended to avoid unacceptable lapses in service to customers and to prevent warehousing of scarce orbit and spectrum resources.’”¹⁸ The Commission granted this request and reaffirmed that the rule was designed “to avoid unacceptable lapses in service to customers.”¹⁹ Thus, contrary to DISH’s claim, SpaceX does not in fact conflate operation with service. Rather, DISH’s inability to provide any MSS capability in the United States goes directly to the heart of why its authorization should have been terminated years ago.

DISH’s authorization has now expired twice over, automatically terminating due to DISH’s lack of use, and a second time when its access rights expired. Either way, the Commission should quickly dismiss DISH’s claims, confirm that DBSD has lost its access to the U.S. market, and grant SpaceX’s application so that American consumers can finally experience 2 GHz broadband service that DISH has steadfastly refused to provide.

¹⁴ See *Amendment of the Commission’s Space Station Licensing Rules and Policies*, 19 FCC Rcd. 12637, ¶ 67 (2004) (“*DISCO II Order*”).

¹⁵ See *Expanding Flexible Use in the 3.7-4.2 GHz Band*, 35 FCC Rcd. 2343, ¶ 131 (2020) (“*C-Band Order*”).

¹⁶ DISH June 13 Letter at 1 (quoting *C-Band Order* ¶ 131 n.371).

¹⁷ Cf. 47 C.F.R. § 25.161(c).

¹⁸ Application for Authority to Suspend Operations for More Than 90 Days, ICFS File No. SAT-MOD-20080825-00158, at 4 (Aug. 25, 2008) (quoting *SES Americom, Inc.*, 21 FCC Rcd. 14785, ¶ 11 (IB 2006)).

¹⁹ Grant Stamp, ICFS File No. SAT-MOD-20080825-00158, ¶ 4 (issued Feb. 3, 2009).

Marlene H. Dortch
June 20, 2023
Page 4 of 4

Sincerely,
/s/ David Goldman

David Goldman
Sr. Director, Satellite Policy

SPACE EXPLORATION TECHNOLOGIES CORP.
1155 F Street, NW
Suite 475
Washington, DC 20004
Tel: 202-649-2641
Email: David.Goldman@spacex.com

cc: Pantelis Michalopoulos (counsel for DISH)